

Key Definitions

Age – Age of the subject is based on the subject's date of birth or apparent age, if the subject refuses to provide information or the officer cannot legally demand identification.

Contraband – Items which are illegally possessed. This includes the following:

- a) **Drugs** – any substance defined, enumerated, or included in federal or state criminal statute or regulations, 21 CFR Chapter 1308.11-15 or La. R.S. 40:964, or any substance which may hereafter be designated as a controlled dangerous substance by amendment or supplementation of such regulations or statute. The term shall not include distilled spirits, wine, malt beverages, or tobacco;
- b) **Weapons** – includes any items that are illegally possessed which, in the manner used, is calculated or likely to produce death or great bodily harm. Usually a firearm or edged weapon for Field Interview Card purposes;
- c) **Other** – any other item that is not a drug or a weapon which is illegally possessed

Field Interview Card (FIC) – The method NOPD utilizes to document official Stops/Terry Stops and other discretionary interactions with members of the public. To conduct a field interview, an officer must have reasonable suspicion that the subject has been, is, or is about to be, engaged in the commission of a crime. According to Departmental policy, only one FIC entry should be made per incident.

Sex – Synonymous with gender, sex of the subject is entered by the officer and is based on the officer's observation, if not provided to the officer by the subject.

Neighborhood – Neighborhoods are defined using the neighborhood boundaries disseminated by The Data Center (datacenterresearch.org).

Race/ethnicity – Race/ethnicity of the subject is entered by the officer and is based on the officer's observation.

Search – An inspection, examination, or viewing of persons, places, or items in which an individual has a legitimate expectation of privacy. The U.S. Constitution generally requires law enforcement to obtain a warrant prior to conducting a search. There are, however, limited exceptions to the warrant requirement, including the following types of searches:

- a) **Consent to search** – permission given to a law enforcement officer to search a person, vehicle or structure by one who has the legal right to do so;
- b) **Exigent circumstances** – A compelling urgency or true emergency that an officer can specifically describe not using vague terms or boilerplate language. Circumstances that cause a reasonable person to believe that prompt action is necessary to prevent injury to himself/herself or others.
- c) **Incident to arrest** – a search that takes place during or immediately after a physical arrest;

- d) Inventory – an administrative search conducted to itemize and identify property for safe-keeping;
- e) Plain view – if an officer sees an item that is immediately recognizable as contraband and they are in a place they have a legal right to be when the viewing is made, the item can be seized;
- f) Pat down/frisk - An external examination of the outer garments of an individual for the purpose of ensuring the individual does not possess any weapons. A pat down may only be performed when it is based on an officer's reasonable suspicion that the person is armed and dangerous and must be limited to what is necessary to detect weapons
- g) Vehicle Exception - Officers may search a vehicle without a search warrant if they have probable cause to believe that evidence or contraband is in the vehicle. The scope of the search is limited to only the area that the officers have probable cause to search.

Stop –A brief, minimally intrusive detention of a subject, including pedestrians, bikers, and/or the occupants of a vehicle, during which a reasonable person in the subject's position would not feel free to leave, as defined in *Terry v. Ohio*, 392 U.S. 1 (1968).

Investigatory Stop – The temporary involuntary detention and questioning of a person and/or vehicle and its occupants to investigate potential criminal conduct. To conduct an investigatory stop, the officer must have reasonable suspicion that the individual or vehicle occupant has engaged, is engaging, or is about to engage in criminal conduct.

Vehicle stop—The involuntary detention of a motor vehicle and its occupants. Vehicle stops may be conducted (1) where there is probable cause to believe that the driver has committed a traffic violation or (2) where there is reasonable suspicion that a vehicle occupant has engaged, is engaging, or is about to engage in criminal conduct.

Stop result – A stop may end in any of the six manners listed below:

- a) No action – the stop ends with no enforcement action taken by the officer;
- b) Warning – the stop ends in only a verbal warning by the officer;
- c) Citation – the stop ends with the subject receiving a citation;
- d) Summons – the stop ends with the subject receiving a summons in lieu of a physical arrest;
- e) Arrest – the stop ends with the subject in the physical custody of the officer awaiting booking into a jail facility; or
- f) LEAD – (Law Enforcement Assisted Diversion) the stop ends with the subject, who could have been charged with a misdemeanor, booked into jail or issued a summons, and referred for prosecution, engaged instead by LEAD program staff (a program coordinator and case management team) working with the City's Health Department and a local service provider.

Event type – Field interview cards can be categorized into the different event types that describe the initial reason for the interaction. The event types available on the FIC are listed below:

- a) Call for service – the officer is dispatched by the Orleans Parish Communications District;
- b) Citizen contact – the officer initiates a duty-related conversation with a person;

- c) Criminal violation – the officer observes a violation of law other than a traffic violation;
- d) Flagged down – a person gains the officer’s attention to report a problem or observation;
- e) Juvenile violation – the officer observes a juvenile violating the law;
- f) Present at crime scene – while on the scene of a crime, the officer initiates a duty-related conversation with a person;
- g) Suspect person – the officer initiates a duty related conversation with a person who is a subject in a criminal violation;
- h) Suspect vehicle – the officer initiates a duty related conversation with a person who is in a vehicle that is present or involved in a criminal violation;
- i) Traffic violation – the officer observes a violation of a traffic offense;
- j) Public Safety Ride – the officer provides a voluntary transport to an individual as a public service;
- k) Vehicle Non-Pursuit – the officer decides not to initiate a pursuit on a vehicle that refuses to stop or has driven away after stopping (activated 1/25/2024); and
- l) Other – any other stop or detention by an officer.

Relevant policies

The following approved policies govern NOPD's actions with respect to stops, searches, and arrests:

- Search and Seizure – Chapter 1.2.4
- Terry Stops and Investigatory Stops – Chapter 1.2.4.1
- Search Warrant Consent Forms and Reviews – Chapter 1.2.4.2
- Vehicle Stops – Chapter 1.2.4.3
- Traffic Citations – Chapter 61.3
- Handcuffing and Restraint Devices – Chapter 1.3.1.1
- Evidence and Property – Chapter 84.1
- Arrests – Chapter 1.9
- Miranda Rights –Chapter 1.9.1
- Arrest Warrant Wanted Persons – Chapter 1.9.2
- Alternatives to Arrest – Chapter 1.2.6
- Alternatives to Arrest – Sobering Center – Chapter 1.2.7
- Field Interview Cards – Chapter 41.12
- Juveniles – Chapter 44.2
- Juvenile Warning Notice and Summons – Chapter 44.3
- Temporary Custody of Juveniles – Chapter 44.1.4
- Bias Free Policing – Chapter 41.13
- Other related policies such as Interactions with LGBTQ Persons – Chapter 41.13.1

NOPD policies are available at nola.gov/nopd/policies

Year-to-Year comparisons

As NOPD develops new policies and updates forms, the protocols governing stops, searches, and arrests may change. As a result, the underlying data and what they represent will change as well. This may present difficulty in conducting direct comparisons between 2024 and prior years, or subsequent years. Nevertheless, many comparisons between the 2016 through 2024 data are given below. Specific to updates to the Field Interview Card (FIC) form, NOPD made the following changes in March 2021:

- “Plain View” and “Plain Smell” could no longer be documented as the sole basis for the search and instead were categorized as “relevant factors”
- Added a Limited English Proficiency section to document when a subject has LEP and if so what language they speak and how the officer provided interpretation services.
- Added a restraint section to require officers to document when a subject is restrained, how they were restrained, and the justification for the restraints.

And in February 2018, NOPD made the following changes to the FIC:

- Added a vehicle search section to separate the documentation of searches of people and vehicles
- Added a pat down section to separate the documentation of pat downs from other searches
- Required demographics for passengers
- Added additional fields for consent searches to document when consent was requested, whether it was given, and if a consent search form was completed
- Added additional fields for strip and cavity searches to document the type of search requested, the officer who requested the search, whether a supervisor approved the request, and the supervisor who approved/disapproved the request
- Added a text box for related item numbers
- Added Law Enforcement Assisted Diversion (LEAD) as an option in the result section